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File No.: EXP202206270

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 19/04/2022, a document was submitted to this Agency by A.A.A. and B.B.B. (hereinafter, the claiming parties) in which they file a complaint against the owner of the website ***URL.1, for a possible breach of the provisions of personal data protection regulations.

The reasons on which they base the complaint are as follows:

“[...]

FIRST.- On the website ***URL.1, it has been verified that, if one goes to the news section by following the link: ***URL.2, one arrives at a notice (“notice to local agencies”) in which, aside from other details:

1) The image of Mr. A.A.A. -one of the partners of the firm ***DESPACHO.1- is used and displayed without either him or the firm having ever given their consent for it to be used or processed as personal data of Mr. A.A.A.

2) The name and surname of Mr. A.A.A. are expressly used and inserted on two occasions, without him having ever given his consent for such personal data to be used or processed.

3) Information is provided that the firm ***DESPACHO.1 belongs to Mr. A.A.A., such that even if his name and surname were not stated on that webpage (which they are), it is information that allows for the identification of Mr. A.A.A. As previously expressed, Mr. A.A.A. has never given his consent for that information which allows for his identification to be used or processed.

4) The name and surname of Ms. B.B.B. are expressly used and inserted on one occasion, without Ms. B.B.B. having ever given her consent for her personal data to be used or processed.

SECOND.- The website ***URL.1 does not contain the data of the website owner, so this representation has been unable to request the data controller to delete the personal data and image referred to, which are subject to unlawful processing.

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[...]”

Along with the complaint, the following documentation is provided, among others:

- Screenshots of the website ***URL.1, dated 31/03/2022, which contain the following information:

o Section “News”: “(...)”. Below, there is an image of a man, which would correspond to one of the claiming parties, A.A.A.

o Questionnaire “Request service” with the following sections: name, e-mail, phone, and message.

SECOND: On 02/06/2022, this Agency accessed the website ***URL.1 and verified that the publication subject to the complaint was still appearing.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 03/06/2022, the complaint was forwarded to MARINA MARIOLA, S.L., for it to analyze and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 03/06/2022 as evidenced by the acknowledgment of receipt in the file.

On 08/07/2022, a response was received by this Agency indicating the following:

“[...]

We wish to state that Marina Mariola S.L. is not the creator of this webpage or any other, and therefore, is not the owner of the domain ***URL.1. For this reason, Marina Mariola S.L. is not the one who has published the personal information of the claimants.

THIRD.- ATTEMPT TO PROVE THE NON-OWNERSHIP OF MARINA MARIOLA S.L. REGARDING

THE WEB DOMAIN.-

With the intention of proving that, indeed, Marina Mariola S.L. is not the creator of the webpage in question, we conducted a "Whois" search in the section enabled for this purpose on the OVHcloud website, through which ***URL.1 could be created and which, therefore, has the data of the owner of that domain. With this type of searches, data of the owner -creator- of the webpage of interest can be obtained. The search on the domain ***URL.1 did not yield results with valuable data for identifying the creator of the webpage.

Since we could not prove through this means that Marina Mariola S.L. is not the creator of the website, we contacted OVHcloud to request some type of certification or justification that Marina Mariola S.L. is not the creator -is not

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the holder of said website and, therefore, is not the one who has published the personal information of the claimants. This contact was unsuccessful, as they denied such a certificate over the phone and responded to the email with a generic automatically generated email.

Due to the fact that the previous avenues have not provided relevant data to prove the non-participation of Marina Mariola S.L. in the events that motivate this claim for reasons unrelated to this party, there is a third possibility to attempt to demonstrate that Marina Mariola S.L. and the creator of that website are different individuals.

If we access the page ***URL.1, the mobile phone number ***TELÉFONO.1 appears several times on the website, specifically in the Contact section.

Next, if we access the website ***URL.3, we can see that the contact mobile phone number is the same, ***TELÉFONO.1.

This company, Highcliffe Estates Marbella S.L., has no relation to Marina Mariola S.L. and has a sole administrator, who is a different person from the sole administrator of Marina Mariola S.L.

That is to say, it is clear that the person who created the website ***URL.1 is not the company Marina Mariola S.L.

[...]"

Along with the document, the following documents are submitted, among others:

- Document No. 1: Deed of re-election of sole administrator, dated 11/11/2021, of MARINA MARIOLA, S.L.

- Documents No. 2 to 7: screenshots dated 29/06/2022, of the search conducted in "Whois" regarding the holder of the domain ***URL.1.

- Documents No. 8 to 16:

- o Copy of the email sent on 22/06/2022 by ***EMAIL.1 to ***EMAIL.2, with the subject "Website ***URL.4".

- o Screenshots dated 23/06/2022, of the "Contact" section of the website ***URL.1, as well as of the website ***URL.5.

- o Copy of the Simple Notes of the company Highcliffe Estates Marbella S.L. and Marina Mariola S.L., issued on 10/06/2022 and 16/02/2018, respectively.

FOURTH: On 14/07/2022, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claiming parties was admitted for processing.

FIFTH: On 18/07/2022, a letter from the claiming parties was received by this Agency in which they express their agreement with the investigation request made by the entity Marina Mariola, S.L. regarding the lack of knowledge of the data of the holder of the website ***URL.4.

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SIXTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

1) Through actions carried out by this Agency on 05/09/2022, access was made to the website

***URL.1 and the following points were verified:

- In "Contact," the phone number ***TELÉFONO.2 appears and in the legal notice, for the exercise of rights, the address ***DIRECCIÓN.1.

- The photograph of A.A.A. and his name appears along with the name of C.C.C. associated with a possible complaint by the entity MARINA MARIOLA and informing that A.A.A. is being investigated by the UCO of the Civil Guard and charged by the National Court.

2) Through actions carried out by this Agency on 09/09/2022, the following verifications were made:

- "Axesor" query where three entities with the name MARINA MARIOLA are listed: MARINA MARIOLA, S.L.; MARINA MARIOLA PROPERTIES, S.L.; COM. PROP. MARINA MARIOLA.

- "Axesor" query regarding the entity HIGHCLIFFE ESTATES MARBELLA S.L.

- "Whois" query regarding the ownership of the domain ***URL.4.

3) On 09/09/2022, this Agency sent a request for information to HIGHCLIFFE ESTATES MARBELLA, S.L., and on 23/09/2022, the entity responded as MARINA MARIOLA S.L. indicating that it was requested in June and already stated that it was not the holder of the website ***URL.1.

Along with the letter, the following documentation is submitted, among others:

- As Document No. 1: Deed of re-election of sole administrator, dated 11/11/2021, of MARINA MARIOLA, S.L.

- As Document No. 2: copy of the letter of allegations, dated 07/07/2022, submitted by MARINA MARIOLA, S.L. in response to the transfer made by this Agency on 03/06/2022.

4) Through actions carried out by this Agency on 05/10/2022, access was made to the website

***URL.3 and the following points were verified:

- The contact phone number ***TELÉFONO.2 is listed.

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- In the Privacy Policy it states: "The portal owned by C.C.C.... Affected parties can exercise their rights of access, rectification, cancellation, and opposition before (...), by means of a written request addressed to ***ADDRESS.1."

5) On 19/01/2023, this Agency received the response prepared by OVHCLLOUD, as the registrar of the domain ***URL.4, to the information request dated 06/10/2022. In its letter, it informs that the owner of the domain in question is D.D.D., ***ADDRESS.2.

6) On 26/01/2023, this Agency sent an information request to D.D.D. as the owner of the website ***URL.1, as informed by the OVHCLLOUD registrar; resulting in "Returned to sender as 'Unknown'" dated 03/02/2023, as indicated in the acknowledgment issued by Correos.

7) On 09/02/2023, this Agency sent a new information request to D.D.D. at the address ***ADDRESS.2 obtained from the data listed in the Register; resulting in "Returned to sender as 'Excess'" dated 09/03/2023. Prior to this, two delivery attempts were made with the result of "Absent," and in the last attempt, a "Notice left in mailbox" was issued and not collected at the office.

SEVENTH: On 26/06/2023, an action was taken to incorporate screenshots of the website ***URL.1, dated 21/06/2023, into the file, showing the publication subject to the complaint and the homepage of the website.

EIGHTH: On 29/06/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 6.1 of Regulation (EU) 2016/679

(General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5.a) of the GDPR. Additionally, as a provisional measure, the Director ordered the complained party to remove the publication and photograph subject to the complaint; granting a period of ten working days from the notification of the agreement to initiate the present sanctioning procedure to justify before this Agency the compliance with the request.

This initiation agreement was notified in accordance with the rules established in the LPACAP through an announcement published in the Official State Gazette (hereinafter, BOE) on 27/07/2023.

NINTH: On 03/08/2023, the complained party submitted a written response, in due time and form, to this Agency stating that it was not the owner of the website marinamariola.com, but the company listed in the "Legal Notice" section of the same. Specifically, HIGHCLIFFE ESTATES, S.L., B93407872, (...). It also acknowledged having designed and developed the website for the cited company, but stated that it did not participate in the creation of its content.

TENTH: On 13/09/2023, the instructor of the procedure agreed to open a period for evidence, considering incorporated the complaint filed by the complaining parties and their documentation, the documents obtained and generated during the admission phase of the complaint, and the report of prior investigative actions that are part of the procedure ***PROCEDURE.1; as well as the allegations to the initiation agreement of the present sanctioning procedure submitted by the complained party. Furthermore, it requested the complained party to provide a copy of the contract or equivalent document signed by D.D.D. and HIGHCLIFFE ESTATES MARBELLA S.L., in which the existence of a relationship between both parties is recorded in order to provide an IT service and what its scope is; as well as a copy of the invoices for the renewal of server and domain services issued to HIGHCLIFFE ESTATES MARBELLA S.L.

On 26/09/2023, the complained party submitted a written response to this Agency, providing a copy of an invoice issued by D.D.D., ***NIF.1 to HIGHCLIFFE ESTATES MARBELLA, SL, B93407872, dated 20/09/2023, for the amount of 000.00€.

ELEVENTH: On 18/04/2024, the instructing body prepared a resolution proposal in which it proposed the filing of the present sanctioning procedure as it could not attribute responsibility for the treatment in the publication subject to the complaint to the complained party.

The resolution proposal was notified in accordance with the rules established in the LPACAP by electronic means on 18/04/2024.

No allegations were made against the resolution proposal.

From the actions carried out in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: In the screenshots accompanying the complaint, dated 31/03/2022, it is observed that in the "News" section of the website ***URL.1 the following text appears:

***URL.1.

An image of a man corresponding to A.A.A. appears.

SECOND: On 02/06/2022, the publication subject to the complaint was still available on the website.

THIRD: On 08/07/2022, in response to the transfer made by this Agency, MARINA MARIOLA, S.L. submitted, among other documents:

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- Documents No. 2 to 7. Screenshots dated 29/06/2022 of the search conducted in "Whois" regarding the holder of the domain ***URL.1. In the "Registrar" section, OVH sas is listed.

- Documents No. 8 to 16:

o Copy of an email sent on 22/06/2022 at 9:52 AM from ***EMAIL.1 to ***EMAIL.2, with the subject "Website XXXXX". The content requests OVHCloud for a certificate/justification that the entity Marina Mariola, S.L. is not the creator of the website ***URL.1.

o Copy of an email sent on 22/06/2022 at 9:54 AM from ***EMAIL.3 to ***EMAIL.4. The content contains a generic response from OVHCloud to the aforementioned request.

o Screenshots dated 23/06/2022 from the "Contact" section of the website ***URL.1 with the following information:

- ☐ Address: Building ***EDIFICIO.1.
- ☐ Phone: ***TELÉFONO.1
- ☐ City: ***CIUDAD.1
- ☐ E-mail: ***EMAIL.3

o Screenshots dated 23/06/2022 from the "Contact" section of the website ***URL.2 with the following information:

- ☐ Address: Building ***EDIFICIO.1
- ☐ E-mail: ***EMAIL.4
- ☐ Phone: ***TELÉFONO.1

o Simple note of the company HIGHCLIFFE ESTATES MARBELLA S.L., issued on 10/06/2022 at 12:23 PM. The content includes the following information:

- ☐ Registered office: ***DIRECCIÓN.2
- ☐ NIF: B93407872

o Simple note of the company MARINA MARIOLA, S.L., issued on 16/02/2018 at 12:15 PM. The content includes the following information:

- ☐ Registered office: ***DIRECCIÓN.3
- ☐ NIF: B29695327

FOURTH: On 05/09/2022, the publication subject to the complaint continued to be displayed on the website ***URL.1.

FIFTH: On 05/09/2022, it is proven that on the website ***URL.1 appears:

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- In the "Contact" section, the contact details listed in point three of "Proven Facts".
- In the "Privacy Policy and Legal Notice" section, the following text appears:
"Affected parties can exercise their rights of access, rectification, cancellation, and opposition before (...), by writing to ***DIRECCIÓN.1"
"(...) reserves the right to make changes to the website without prior notice, in order to keep its information updated, adding, modifying, correcting, or deleting the published content or the design of the portal."

SIXTH: On 09/09/2022, the following data is recorded in "Axesor":

- Three entities with the name (...):
 - o MARINA MARIOLA SL with NIF B29695327 with registered office at ***DIRECCIÓN.2 whose activity is: "Buying and selling real estate."
 - o MARINA MARIOLA PROPERTIES SL with NIF B93610780 with registered office at ***DIRECCIÓN.3 whose activity is: "Buying and selling real estate on its own account."
 - o COM. PRO. ***COMUNIDAD.1 with NIF ***NIF.1 with registered office at ***DIRECCIÓN.4 whose activity is "Other associative activities."
- The entity HIGHCLIFFE ESTATES MARBELLA S.L., with NIF B93407872 with registered office at ***DIRECCIÓN.5.

SEVENTH: On 09/09/2022, it is recorded in the "Whois Register" as the Registrar of the domain ***URL.2, OVH, SAS OVH.

EIGHTH: On 23/09/2022, HIGHCLIFFE ESTATES MARBELLA S.L. responded as MARINA MARIOLA, S.L. to the request that this Agency made to the first entity, indicating that it was requested in June and already stated that it is not the owner of the website marinamariola.com.

NINTH: On 05/10/2022, it is recorded that:

- On the website ***URL.1, the same data and text collected in point five, from the "Proven Facts" section, regarding "Contact" and "Privacy Policy and legal notice" appear.
- On the website ***URL.1, the following phone number is listed: ***DIRECCIÓN.1 and, in the "Privacy Policy and legal notice" section, the following text appears:

"(...)

The portal owned by (...) contains links to third-party websites, (...).

Affected parties can exercise their rights of access, rectification, cancellation, and opposition before (...).

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TENTH: On January 19, 2023, in response to the information request made by this Agency, OVH CLOUD informs that the holder of the domain ***URL.1 is D.D.D., ***ADDRESS.1.

ELEVENTH: On September 20, 2023, as stated in the document "Invoice renewal 2023" provided by the respondent in response to the evidence request from this Agency, the respondent issues an invoice to HIGHCLIFFE ESTATES MARBELLA SL, B93407872, with the address C/ ADDRESS.1; for the amount of 000.00€. The concept is listed as:

- (...)

LEGAL GROUNDS

I

Competence and Procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

"2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;"

In the present case, pursuant to Article 4.1 of the GDPR, physical images, as well as the names and surnames of a person, are personal data. Thus, their inclusion on websites, forums, publications, which identifies or makes identifiable a person, constitutes processing of personal data.

III

Claims Made

This Agency has no record of the respondent having submitted a written statement of claims against the proposed resolution.

However, as already indicated in the proposed resolution, regarding the claims made by the respondent against the agreement to open the present sanctioning procedure, the following

considerations were made.

The respondent claims that the holder of the website ***URL.1 is the entity listed in the "Legal Notice" section of the aforementioned website. Specifically, HIGHCLIFFE ESTATES, S.L., B93407872, ***ADDRESS.1.

The respondent acknowledges having designed and developed the website for the aforementioned company but states that it did not participate in the creation of its content.

In this regard, this Agency wishes to point out that the LPACAP regulates in Article 64 the content of the agreement to initiate the sanctioning administrative procedure and indicates that it must contain, at a minimum, "a) Identification of the person or persons allegedly responsible." In this sense, Article 28 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (hereinafter, LRJSP), under the heading "Liability" provides in its section 1 that "Only natural and legal persons who are responsible for acts constituting an administrative infraction may be sanctioned, [...], who are found liable for them by intent or negligence."

The agreement to initiate the present sanctioning procedure identified D.D.D., with NIF ***NIF.1, as the alleged responsible party for the facts outlined above. The domain registrar of ***URL.1, OVH CLOUD, informed that the holder of the domain in question is D.D.D., with address C/ ***ADDRESS.1; and phone ***PHONE.1.

However, upon examining the documentation in the file, it seems evident that the role played by the respondent concerning the website ***URL.1 is limited to providing HIGHCLIFFE ESTATES MARBELLA S.L. with IT support to allow access to it, as indicated in the eleventh point of the Established Facts. Moreover, the website's own Privacy Policy states that (...) "it reserves the right to make changes to the website without prior notice, in order to keep its information updated, adding, modifying, correcting, or deleting the published content or the design of the portal."

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In this manner, the respondent party would not be responsible for the content published and, consequently, for the publication that is the subject of the complaint.

In addition to the above, it must be noted that the contact telephone number and address for exercising the rights of the interested parties that appear on the website ***URL.1 coincide with the data listed on the website ***URL.2 and Axesor in relation to the entity HIGHCLIFFE ESTATES MARBELLA S.L.

Therefore, the allegations made by the respondent party against the initiation agreement of the present sanctioning procedure are upheld.

Thus, in accordance with the applicable legislation and having evaluated the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the present sanctioning procedure against D.D.D., with NIF ***NIF.1.

SECOND: TO NOTIFY this resolution to D.D.D.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with

documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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